

Manjula vs Mohankumar Others on 21 December, 2024

KABC030119112009

Presented on : 26-05-2009
Registered on : 26-05-2009
Decided on : 21-12-2024

IN THE COURT OF THE VIII ADDITIONAL CHIEF
JUDICIAL MAGISTRATE, BENGALURU CITY
Present: Smt. Deepa.V., B.A.L., LLB.
VIII ACJM, Bengaluru City.

Date: This the 21st day of December, 2024

C.C. No.11573/2009

Complainant State by J.C.Nagara Police Station,
Bengaluru.
(Rep.by Sri.R.Vishwanath Sr.APP)

Versus

Accused Nos. 1 Sri Mohan Kumar
Aged about 37 years,
S/o Sri Krishnappa,
2 Smt. Narayanamma
Aged about 45 years,
W/o Sri. Krishnappa,
Both are R/at No.51, 1st Cross,
New Pottery Town,
Bengaluru-560 046
3 Sri Krishnappa, (Abated)
4 Sri Mohan Kumar
Aged about 35 years,
S/o Narayanmurthy,

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R/at No.3/110,
II Main, III Cross,
Lingarajpuram,
Bengaluru-84

5 Sri Venkatramanappa
Aged about 35 years,
S/o Muniyallappa,
R/at No.8, N.Block, C.A.R.North
Police Quarters, Thimmsandra Main
Road, Hegdenagar,

Bengaluru-45

6 Smt. Poornima
Aged about 19 years,
S/o M.Chinnaraju,
R/at No.51, 1st Cross,
New Pottery Town,
Bengaluru-560 046

7 Sri. Rammurthy
Aged about 55 years,
S/o Sri Chowdappa,
R/at No.19, 2nd Cross,
New Pottery Town, Benson Town,
Bengaluru-46
(Rep. by Sri. V. Bharath Kumar
Advocate for Accused No. 1, 2, 4, 5
& 7)
(Rep. by Sri. Raghavendra Advocate
for Accused No. 6)

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1. Date of commission of offence	28.01.2001 and subsequent to the date of marriage and on 25/12/2009
2. Name of Complainant	Smt. Manjula. A
3. Offences complained of	U/s 494, 498(A) r/w 149 of IPC
4. Charge	Pleaded not guilty
5. Final Order	Accused No.1, 2, 4 - 7 acquitted for the offence punishable under section 494 R/w Section 149 of IPC and Accused No. 1 and 2 convicted for the offence punishable under section 498A R/w Section 149 of IPC.
6. Date of order	21-12-2024

JUDGMENT

The Police Sub-Inspector of J. C. Nagara Police Station submitted charge sheet against accused No. 1 to 7 for the offences punishable U/s 494, 498(A) r/w 149 of I.P.C.

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2. Prosecution Case: The accused No. 1 got married to the CW1 Smt. Manjula on 28/02/2001 Bhaagalemma Sri Shiala Kalyana Mantapa. After the marriage, the accused No. 1 and CW1 had led the marriage life at house No. 51, I A Cross, New Poultry Town. The accused No. 1 to accused No. 3 jointly demanded additional dowry when the CW1 was two months pregnancy and abused her and thrown her out of the house thereby inflicted mental and physical cruelty upon CW1. Thereafter the accused No. 1 remarried the accused No.6 during the subsistence of marriage of accused No.1 with the CW1 on 22.12.2018. The accused No. 4, 5 and 7 instigated the accused No. 6 to get married to the accused No. 1 and informed her parents namely CW6 and CW7 and came out of her house for getting married to the accused No. 1.

3. First Information Report: On the basis of first information given by informant cum CW1 namely Smt. Manjula, CW15 PSI of J.C.Nagar Police Station Sri K. Nagaraju registered Crime No.16/2009 against the accused No.1 to 7 for the offences punishable U/s 494, 498(A) r/w 149 of I.P.C., prepared FIR and sent the same to the Court and to his superior officers.

4. Investigation: After registration of FIR, CW15/IO Sri K. Nagaraju drawn spot mahazar on 12.01.2009 and recorded the statement of requisite witnesses and collected the documents and submitted charge sheet against accused No.1 to 7 for the alleged offences.

5. On receipt of charge sheet, this Court took cognizance of offences alleged against the accused.

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6. The accused Nos.1 to 7 were enlarged on bail by the order dated 21/01/2009 and 29/05/2009 respectively.

7. Copies of prosecution paper as required U/Sec.207 of Cr.P.C have been furnished to the accused Nos.1 to 7.

8. Charge: After hearing learned Sr.APP and counsel for accused Nos.1 to 7, the charge for the offences punishable U/s 494, 498(A) r/w 149 of I.P.C., has been framed, read over and explained to the accused in the language known to them, who, in turn, pleaded not guilty and claimed to be tried.

9. Prosecution Evidence: The prosecution in order to establish its case cited 7 witnesses and examined 7 witness and exhibited 24 documents. The examination of CW4 was given up on account of his death by the order dated The presence of CW6 to CW12 and CW15 could not be secured after due execution of proclamation for evidence by the order dated 09/10/2023.

10. Accused statement as per section 313 of CrPC:

After completion of evidence of prosecution, the accused Nos.1 to 7 were examined as per section 313 of Cr.P.C, wherein denied all incriminating evidence appearing in the statement of prosecution witness and did not lead any rebuttal evidence.

11. Heard the arguments. Perused materials on the record.

12. The following points arisen for consideration is as follows;

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1. Whether the prosecution proves beyond all reasonable doubt that the accused No. 1 got married to the CW1 Smt. Manjula on 28/02/2001 Sri Shiala Kalyana Mantapa, Bhagyapalli and after the marriage, the accused No. 1 and CW1 had led the marriage life at house No. 51, I A Cross, New Poultry Town and the accused No. 1 to accused No. 3 jointly demanded additional dowry when the CW1 was two months pregnancy and abused and thrown her out of the house thereby inflicted mental and physical cruelty upon CW1 thereby resulted in commission of an offence punishable u/Sec.498(A) r/w 149 of I.P.C.?

2. Whether the prosecution proved beyond all reasonable doubt that Thereafter the accused No. 1 remarried the accused No.6 during the subsistence of marriage of accused No.1 with the CW1 on 22.12.2018. The accused No. 4, 5 and 7 instigated the accused No. 6 to get married to the accused No. 1 and informed her parents namely CW6 and KABCO30119112009 CC No.11573/2009 CW7 and came out of her house for getting married to the accused No. 1 thereby resulted in commission of an offense punishable u/Sec.494 of I.P.C?

3. What order?

13. The findings on the above points are as under:

Point No.1 : In the affirmative Point No.2: In the Negative Point No.3 : As per final order for the following:

REASONS

14. Point No.1: There is no dispute with regard to the marriage of PW1 with the accused No. 1 and hence no much discussion is required for Ex.P.3 to Ex. P. 15 i.e., Lagnapatrike and marriage photographs.

15. Evidence of Prosecution must be established that the accused Nos.1 to 3 started torturing PW1 for bringing additional dowry when she was two months pregnancy. Mere omnibus statement regarding harassment does not ipso facto makes out a case under section 498A IPC, prosecution is required to prove the overt acts attributed by the accused beyond reasonable doubt and the said principle is appreciated in case of Sakharam and another vs State of Maharastra reported in (2003) 12 SCC 368. Basing this decision, the present cases are taken up for discussion.

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16. It is relevant to reiterate Section 498A of Indian Penal Code which reads as under

Husband or relative of husband of a woman subjecting her to cruelty -- Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

Explanation.-- For the purposes of this section, "cruelty" means--

(a) any wilful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or

(b) harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand.

For commission of an offence under Section 498-A of IPC, the following necessary ingredients require to be satisfied:

(a) The woman must be married;

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(b) She must be subjected to cruelty or harassment; and

(c) Such cruelty or harassment must have been shown either by husband of the woman or by the relative of her husband and the said principle is appreciated in the case of *U. Suvetha v. State* reported in (2009) 6 SCC

757.

17. Every harassment does not amount to "cruelty" within the meaning of Section 498-A. For the purpose of Section 498-A, harassment simpliciter is not "cruelty" and it is only when harassment is committed for the purpose of coercing a woman or any other person related to her to meet an unlawful demand for property, etc. that it amounts to "cruelty" punishable under Section 498-A IPC and the said principle is appreciated in the case of *State of A.P.v.M. Madhusudhan Rao* reported in (2008) 15 SCC 582.

18. Cruelty can either be mental or physical. It is difficult to straitjacket the term cruelty by means of a definition because cruelty is a relative term. What constitutes cruelty for one person may not

constitute cruelty for another person and the said principle is appreciated in the case of G.V. Siddaramesh v. State of Karnataka reported in (2010) 3 SCC 152. The concept of cruelty and its effect varies from individual to individual, also depending upon the social and economic status to which such person belongs and the said principle is appreciated in the case of Gananath Pattnaik v. State of Orissa reported in (2002) 2 SCC 619.

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19. No doubt, this court cannot expect any evidence for the matrimonial offences when it was taken place within the four walls however PW1 deposed that

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KABCO30119112009 CC No.11573/2009 However in the cross examination, PW1 deposed as under

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prosecution/PW1 has not produced any document to show that the parents of PW1 has purchased the gold weighing 200 grams or for giving Rs. 1 lakhs. Though PW1 deposed that the father of PW1 could manage the marriage expenses and alleged dowry by selling the house but no corroborating document was produced with regard to sale of house particularly the accused No. 1 and 2 has taken the defence that PW1 and her family does not have financial capacity to give the alleged dowry or to perform the marriage in a grand KABCO30119112009 CC No.11573/2009 manner as alleged in the complaint as per Ex. P. 1 or in her statement before the police authority. Added to which, PW1 did

not possess any mobile in the year 2001 and hence the question of preventing the PW1 from talking to her family members does not arise.

20. Added to which, PW1 had approached the the superior authority of accused No.1 for allotment of quarters however the accused No.1 had filed a petition for restitution of conjugal rights in M. C No. 781/2004 against PW1 which was much less prior to the the allotment of quarters. The PW1 filed a suit for maintenance in O S No. 154/2004 wherein the maintenance amount was awarded. However the accused No. 1 filed a petition for divorce on the file of family court in M. C. No. 2508/2006 for divorce however the PW1 through her son filed the partition suit and she filed maintenance petition in O S No. 1148/2024 and CrI. Misc. No. 181/2023. thus, it is clear that accused No. 1 had made attempt to bring the marriage life together with the PW1 by filing the restitution petition. If the PW1 had intention to restitute the marital life with the accused No. 1, she could have immediately joined the accused No.1 in the matrimonial rather combating with the superior of accused No.1 for allotting the quarters. The PW1 expressed her grievance that on the instigation of accused No. 2, the accused No. 1 and 3 used to assault her for trivial issues however the acts of accused No. 2 is normal in the course of marriage life due to the possessiveness towards her only son and the same cannot be termed as cruelty.

21. It is the defence of accused No. 1 that PW1 was demanding a separate house and hence she refused to KABC030119112009 CC No.11573/2009 join the matrimonial home after giving birth to her son. However the PW1 has indirectly admitted the said version of PW1 which reads as under

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Thus, the accused No. 1 has filed a petition for restitution of conjugal rights and the same was pending on the file of family court till the year 2006.

22. With regard to demand of additional dowry, the evidence of prosecution witnesses reads as under

i. CW1 is examined as PW1 and got marked Ex p -1 to P23. In her chief examination she has not deposed or reiterated all the contents of her complaint (Ex.P1) Further in her chief examination she deposed in KABC030119112009 CC No.11573/2009 the 11th line of her chief examination that Varadakshaniya baaki aaropigalu hodeyuthiddaru which is improved version, which is not stated in her complaint Ex.P1. Further in the sccond page of her chief examination in the 6th line she deposed that Dinanka 25-12-2008 randu yeradaneya maduve agiruttare which is

improved version which is not stated in her complaint Ex.P1. The same are admitted in her cross examination.

ii. CW-2 examined as PW-2 who is the mother of the CW-1 In her chief examination she has not deposed or reiterated all the contents of her statement as per Section 161 of CRPC. Further in her chief examination she deposed in the 11th line of her chief examination that aaropigalu varadhakshineya..... hodeyuthiddaru which is improved version which is not stated in her statement as Section 161 of CRPC given to the police in fact she admits the same in cross-examination. In her cross examination she admits that in the 2003 she does not have mobile phone. Further she admits KABC030119112009 CC No.11573/2009 that she has not remembered dates of alleged events which she deposed in her chief examination.

iii. CW-3 examined as PW-3 is the brother of the CW-1 In his chief examination he has not deposed or reiterated all the contents of his 161 statement. Admittedly she is very young at the time of marriage of the CW-1 with A-1. He deposed in the 10th line of his chief examination that Nanthara 1 rinda 3 aaropigalu biduthiralilla which is improved version which is not stated in his 161 statement given to the police. Further he deposed in the 2nd line from bottom of his chief examination that dhinanka 25-02-

2011 ralli madhuveyadanu which is improved version which is not stated in his statement as per section 161 of CRPC given to the police.

iv. CW-5 examined as PW-4 who is the maternal-uncle of the CW-1. In his chief examination he has not deposed or reiterated all the contents of his 161 statement. He deposed in the 2nd page of 1st line of his chief examination that punah kalisidharu which is KABC030119112009 CC No.11573/2009 improved version which is not stated in his 161 statement given to the police. Further he deposed in the 2nd page 8th line of his chief examination that nanthara naavu karadhukondu bandharu which is improved version which is not stated in his 161 statement given to the police. Further he deposed in the 2nd page 21st line of his chief examination that herigegendhu hodharu which is improved version which is not stated in his statement as per Section 161 of CRPC given to the police. Further he deposed in the 2nd page 21st line line of his chief examination that herigegendhu hodharu which is improved version, which is not stated in his 161 statement given to the police. Further he deposed in the 3rd page 2nd para of his chief examination that 2009 ralli vasa madalu bittirutharre. which is improved version which is not stated in his statement as per Section 161 of CRPC given to the police.

cannot be accepted that the PW1 to PW4 are family members of PW1 and hence their version cannot be KABC030119112009 CC No.11573/2009 relied. It ought to be seen that the marriage is a family function where this court cannot expect the third party

to witness the marriage talks and marriage expenses. The prosecution has not produced any document to show that they had given alleged dowry to the accused No. 1 to

3. Though the PW1 had deposed in the cross-examination that she has produced the bills in the maintenance case and if she has given in the maintenance case, what prevented her to produce the same when she was able to produce Ex. P. 16 to 23 during the course of evidence. Thus, the demand of additional dowry by the accused No. 1 to 3 was not proved by the prosecution.

23. Merely the PW1 was staying away from the matrimonial home in the official quarters of accused No. 1 with her son, does not mean that the accused No. 1 had license to get married to the accused No. 6 by tying taali in the presence of accused No. 2 during the subsistence of first marriage and the accused No. 6 herself admitted in her complaint as per Ex. P. 21 and living under one roof and the Ex. P. 18 how the photograph of accused No. 1 and accused No. 6 as father and mother to the girl child Pooja M was embossed was not explained by the accused No. 1. The criminal procedure code provides opportunity to the prosecution to produce the documents relevant to the subject matter of complaint as per Section 242 of CRPC. Merely PW1 produced the documents at the later stage than giving at the time of investigation cannot be a ground to suspect the authenticity of the document particularly when the accused No. 1, 2 and 6 was not denied the same as far as Ex. P. 21 is concerned and Ex. P. 18 as far as accused Nos.1 and 6.

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24. At this juncture, it is relevant to mention Section 106 of Indian Evidence Act which reads as under:

106. Burden of proving fact especially within knowledge.--When any fact is especially within the knowledge of any person, the burden of proving that fact is upon him.

Thus, on examination of accused No.1 and 2 as per 313 of Cr.P.C has not at all given any explanation except denying the incriminating statement posed to them. The accused No. 2 has not rebutted the contents of Ex. P. 21 against her that she made the accused No. 1 to tie taali to the accused No. 6 which is very clear that the ill motive of accused No. 1 and 2 to harm the life of PW1 by putting the marriage life of PW1 to an end.

25. The accused No. 1 and 2 did not rebut the contents of complaint- Ex. P. 21. Thus, the prosecution proved the cruelty upon the PW1 that he contracted the invalid marriage with the accused No. 6 by tying taali without dissolution of marriage of accused No. 1 with the PW1 and making a woman to lead marriage life amounts to mental cruelty. Thus, the evidence of PW1 with the Ex. P. 21 and Ex. P. 18 is very clear that the PW1 was subjected to mental cruelty by the accused No. 1 and 2 thereby offences punishable u/Section 498A of IPC has been proved as against the accused Nos.1 and 2. Hence, this court answers the above point No.1 in the affirmative.

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26. Point No.2: Before adverting to the points for discussion, it is relevant to discuss the relevant laws pertaining to Bigamy.

Section 5 of the Hindu Marriage Act 1955 lays down the conditions to be fulfilled in a marriage between any two Hindus. As per the records, Admittedly, the accused No. 1 and 6 are Hindus and their identity as identified in the charge sheet was not denied by them. One of the conditions is that neither party has a spouse living at the time of the marriage. Section 5 of the Act reads as under

(1) a Hindu marriage may be solemnized in accordance with the customary rites and ceremonies of either party thereto; and (2) where such rites and ceremonies include the Saptapadi (that is, the taking of seven steps by the bridegroom and the bride jointly before the sacred fire), the marriage becomes complete and binding when the seventh step is taken.

27. Section 11 of the Hindu Marriage Act 1955 deals with void marriages. One of the conditions, if contravened, which makes a marriage solemnized after the commencement of the Act null and void, is, if any party thereto has a spouse living at the time of the marriage. Section 11 of the Hindu Marriage Act 1955 has reiterated the position and providing for punishment of bigamy reads thus:

KABCO30119112009 CC No.11573/2009 Any marriage between two Hindus solemnized after the commencement of this Act is void if at the date of such marriage either party had a husband or wife living; and the provisions of Section 494 and 495 of the Indian Penal Code shall apply accordingly.

28. Section 494 of the Indian Penal Code deals with the offence of bigamy reads as under;

Marrying again during life-time of husband or wife Whoever, having a husband or wife living, marries in any case in which such marriage is void by reason of its taking place during the life of such husband or wife, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Exception.--This section does not extend to any person whose marriage with such husband or wife has been declared void by a Court of competent jurisdiction, nor to any person who contracts a marriage during the life of a former husband or wife, if such husband or wife, at the time of the subsequent marriage, shall have been continually absent from such person for the space of KABCO30119112009 CC No.11573/2009 seven years, and shall not have been heard of by such person as being alive within that time provided the person contracting such subsequent marriage shall, before such marriage takes place, inform the person with whom such marriage is contracted of the real state of facts so far as the same are within his or her knowledge.

Thus, the essential ingredients of offence under Section 494 of IPC, as explained in the case of Gopal Lal vs State of Rajasthan reported in (1979) 2 SCC 170 and in the case of S. Nitheen v. State of Kerala

reported in 2024 IN SC 420 are:

- (i) that the accused had already married some person;
- (ii) that the accused married another person by performing marriage with the ceremonies and rituals;
- (iii) that the husband or wife to whom the person was first married, as the case may be, was alive on the date of the second marriage; and
- (iv) that the second marriage was void by reason of its taking place during the lifetime of the first spouse of the accused.

For prosecution under Section 494 of the Indian Penal Code, it is incumbent upon the informant/PW1 to KABC030119112009 CC No.11573/2009 establish that both the marriages pleaded by her were solemnized in accordance with the customary rites and ceremonies either prescribed by the Hindu Law governing the parties or recognized by the custom in the Kumbar community to which the parties belong and that admission of either the first or the second marriage by the accused No. 1 and accused No. 6 is no evidence of the marriage rather PW1 deposed in the chief examination in page 2 which reads as under

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Based upon the examination in chief of PW1, this court had gone through the records particularly from Ex. P. 16 to Ex. P. 23. It appears from the Ex. P. 21 i.e., complaint dated 03/07/2009 which has been extracted as under

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The accused No. 1 got married to the accused No. 6 by tying the thali in the presence of accused No. 4 and accused No. 2 at Odakathoor Matta, Nagamma Temple, Halasoor. More so over, the accused No. 6 has clearly lodged the complaint that the accused No. 1 divorced PW1 by showing divorce letter as PW1 was mentally unfit and got married to her. Prosecution did not make any endeavor to produce any cogent evidence before this court that the accused No. 2 with the knowledge of subsistence of marriage of accused No. 1 with the PW1, got married to the accused No. 1.

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Thus, it is clear that the accused No. 1 got married to the accused No. 6 by tying the thali in the presence of accused No. 4 and accused No. 2 at Odakathoor Matta, Nagamma Temple, Halasoor. More so over, the accused No. 6 has clearly lodged the complaint that the accused No. 1 divorced PW1 by showing divorce letter as PW1 was mentally unfit and got married to her. Prosecution did not make any endeavor to produce any cogent evidence before this court that the accused No. 2 with the knowledge of subsistence of marriage of accused No. 1 with the PW1, got married to the accused No. 1.

29. On a reading of the provisions of Section 5, 7, 11, and 13 of the Hindu Marriage Act, it is clear that at the time of the second marriage, neither party should have a spouse living. If the spouse is living at the time of the second marriage, it is a void marriage.

30. The expression 'spouse' means a lawfully married husband or wife. Before a valid marriage can be solemnized, both parties to such marriage must be either single or divorced or a widow or a widower and then only they are competent to enter into a valid marriage. The word 'solemnize' means to celebrate the marriage with proper ceremonies and in due form. In this context, it is relevant to mention in the case of *Bharao Shankar Lokhund C Vs State of Maharashtra* reported in AIR 1965 SUPREME COURT 1564 and *Kanwal Ram And Ors vs KABCo30119112009 CC No.11573/2009 The Himachal Pradesh Admn* on 19 August, 1965 reported in AIR 1966 SUPREME COURT 614 held that in a prosecution for bigamy, the second marriage had not only to be proved as a fact, but it must also be proved that the necessary ceremonies had been performed. The burden is heavily upon the prosecution to prove that the second marriage of Accused No. 1 with the accused No. 6 was taken place with the essential ceremonies to constitute a valid marriage and the said principle is appreciated in the case of *Priya Bala Vs Suresh Chandra* reported in AIR 1971 SC 1153.

The words used in Section 494 of the Indian Penal Code "whoever marries" and "marriage" relate to second marriage. The words used in that section "husband or wife" relate to the first marriage. The first marriage is a past event and the second marriage is a recent event. The words used in Section 494 of the Penal Code and the words used in Sec 17 of the Hindu Marriage Act have to be considered carefully. If we construe Section 494 of the Indian Penal Code as it is with reference to Section 17 of the Hindu Marriage Act, it is clear that if a person marries again while the other spouse was living, it

is an offence.

The main offence that has to be proved in a case of bigamy is that a valid marriage took place between the accused No. 1 and accused No. 6, whilst the other spouse was living. One of the conditions to be fulfilled is that they are husband and wife. The relationship of wife and husband comes in if there is a valid marriage. In the Supreme Court cases cited above, it was held that the KABC030119112009 CC No.11573/2009 valid ceremonies that are required to be necessary for a Hindu marriage have to be proved. Homam and Saptapadi are also the essential ceremonies for a valid Hindu marriage. If the custom dispenses with those two ceremonies, that custom also has to be proved. The tying of taali is admitted by the accused No. 6 herself however the prosecution never adduced any evidence or brought any evidence to show that the by following the ceremonies particularly taking the Saptapadi around the sacred fire were performed whilst the performance of marriage of accused No. 1 with the accused No. 6. There is no evidence adduced by the PW1 or produced by the PW1 that in the Kumbhar community of PW1 and the accused No. 1, there is no custom fo Saptapadi. In fact, PW1 herself did not see that the marriage of accused No. 1 with the accused No. 6 as per her evidence as she heard from the neighbour and such being the case this court cannot come to a conclusion that the accused No. 1 contracted the valid marriage with the accused No. 2.

31. In this regard, Section 50 of the Evidence Act reads as follows:

Opinion on relationship when relevant:- When the Court has to form an opinion as to the relationship of one person to another, the opinion, expressed by conduct, as to the existence of such relationship, of any person who, as a member of the family or otherwise, has special means of knowledge on the subject, to a relevant fact:

Provided that such opinion shall not be sufficient to prove a marriage in proceedings under the KABC030119112009 CC No.11573/2009 Indian Divorce Act (4 of 1869), or in prosecutions under Section 494, 495, 497 or 498 of the Indian Penal Code, 1860 (45 of 1860).

The Proviso clearly shows that as a fact, the opinion alone itself is not sufficient for proof of the marriage. Section 50 of the Evidence Act never contemplated that the presumption as a whole cannot be taken into account in a case of bigamy.

32. A second marriage which is an offence punishable under Section 494 of the Indian Penal Code, strict proof is required. Marrying a woman without following the customs particularly the saptapadi is equivalent of living in a relationship can at the most be a morally blameworthy conduct of accused No. 1. The production of identity card of Pooja M wherein the said Pooja M was identified as daughter of Murali Mohan K and Madhumitha however the picture of the accused No. 1 and accused No. 6 was embossed on the identity card as per Ex. P. 18 issued by MMET English Primary and High School, M. S. Nagar, Bangalore - 560 033. However, the production of Ex. P. 16 (photograph of accused No. 1 and accused No.6 together), Ex. P 17 (accused No. 1 with the child) and adhara card of accused No. 6 where she identified as wife of Mohan Kumar will not supersede the marriage

ceremonies particularly the saptapadi whilst contracting the second valid marriage of accused No. 1 with accused No. 6 which cannot be said to have proved an offense punishable under section 494 of IPC and the said principle is appreciated in the case of Nisha vs. State of U.P. and another 2024 LiveLaw (AB) 283.

KABCO30119112009 CC No.11573/2009 had given identity as Murali Mohan K and Madhumitha however the prosecution has not provided any particulars whether they have just changed the name without following any procedure of law for change of name only for concealment of relationship of the Accused No. 1 with the accused No. 6.

34. The law is well settled that the accused No. 6 being second wife or her family members cannot be prosecuted for section 494 of IPC and the said principle is appreciated in the case of Thimmappa & Ors. v. Bharathi reported in neutral citation 2024 KHC:10412. Added to which, the accused No. 4 was present as per the Ex. P. 21 complaint dated 03/07/2019 but there is nothing on record to show that the accused No. 5, 7 and accused No. 4 had knowledge of first marriage of accused No. 1 with the PW1 particularly when the prosecution has not proved the valid marriage of the accused No. 1 and accused No. 6 by following the ritual of saptapadi i.e., seven steps around the sacred fire. It appears from the record that CW15 IO has secured the letter from Sri Mahan Odukathur Swamigal Mutt, Dhandayaudapani Temple, Gangadara Setty Road, Bangalore - 560 0042 dated 14/05/2009 wherein it is clear that "on 25/12/2008, no marriage was performed between Mohan Kumar and Smt. Poornima in our temple"

which is evident that no Homa is done for following the procedure of saptapadi i.e., for taking seven steps /vows KABCO30119112009 CC No.11573/2009 around sacred fire. Thus, the prosecution/PW1 failed to prove the alleged offences under section 494 R/w section 149 of IPC thereby this court answers the above point No. 2 in the negative.

35. Point No.3: For the forgoing reasons and the findings to the above points No. 1 and 2, this court proceed to pass the following:

ORDER By acting under Section 248 (1) of Cr.P.C, i. The accused No.1 and 2 convicted for the offence punishable U/s.498(A) R/w Section 149 of IPC.

ii. The accused No.1, 2 4 to 7 acquitted for the offence punishable U/s. 494 R/w Section 149 of IPC.

iii. Call later for hearing on sentence.

(Dictated to the Stenographer, directly on computer and typed by him, verified and corrected by me, then the judgment pronounced by me in the open court, on this 21st day of December 2024.) VIII Addl. CJM, Bengaluru.

KABCO30119112009 CC No.11573/2009 ORDER ON SENTENCE

1. Heard on sentence.
2. Learned Sr.A.P.P. prayed this Court to impose maximum sentence provided for the offence.
3. On the other hand, learned counsel for the accused submitted that the accused No. 1 is a earning member of family being Government Servant and the accused No.2 is a senior citizen. They have no criminal antecedent. Hence prayed the Court to take lenient view.
4. Having regard the submission of both the parties admittedly the offence committed by the accused No.1 and 2 is against his own wife and daughter-in-law. So, when the accused No.1 contacted second marriage by tying taali during the subsistence of first marriage of PW1, the life of PW1 and accused No.6 in the presence of accused No.2 and the children of PW1 and children of accused No.6 became a questionable in the society where they have to undergo lot of humiliation and the accused No.6 was just 19 years old who was in the teenage. By encashing the teenage of accused No. 6, the accused Nos.1 and 2 have spoiled the life of accused No. 6 in addition to the life of PW1 and their respective children and hence the accused Nos.1 and Nos.2 is not entitled for the benefit under Probation of Offenders Act.
5. Section 498A of Indian Penal code provides for punishment of imprisonment of either description for a term which may extend to 3 years, and shall also be liable to fine.

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6. It is settled principle of law that sentence imposed shall respond to the cry of the society. Here in this case, the accused has committed offence against against his own wife and her daughter in law respectively.
7. At this juncture it is pertinent to mention decision of the Hon'ble Apex Court State V/s Sanjeev Nanda AIR 2012 SC 3104 wherein it is held, "Law demands that the offender should be adequately punished for the crime, so that it can deter the offender and other persons from committing similar offence. Nature and circumstances of the offence; the need for the sentence imposed to reflect the seriousness of the offence; to afford adequate deterrence to the conduct and to protect the public from such crime are certain factors to be considered while imposing the sentence."
8. Keeping in mind the mitigating factors against the accused and considering the above ratio it requires some leniency while passing the sentence. Hence this court proceed to pass the following:

ORDER Acting U/Sec.248(1) of the Cr.P.C.

KABCO30119112009 CC No.11573/2009

- (i) The accused Nos.1 and 2 shall undergo simple imprisonment for 2 years for the offence punishable U/s 498A R/w Section 149 of IPC and also liable to pay each fine of ₹10,000/-. In default of payment of fine he shall undergo SI for 30 days.

(ii) Acting under Section 357 of Criminal Procedure Code out of the above stated fine amount of ₹16,000/- (Rupees sixteen Thousand only) be paid to the first informant/PW1 - Manjula A W/o Mohan Kumar as compensation.

shall undergo SI for 30 days.

(iii) The bail bond of the accused Nos.1 and 2 shall stands canceled.

(iv) Office is to supply free copy of this Judgment to the accused Nos.1 and 2.

v) The accused Nos.1, 2, 4 to 7 are found not guilty and acquitted from the offences punishable U/s 494, r/w 149 of I.P.C.

(vi) Accused Nos.4 to 7 are set at liberty.

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(vii) In view of Section 437-A of Cr.P.C their bail bonds shall be in force for 6 (six) months.

(viii) Ordered accordingly.

(Dictated to the Stenographer, directly on computer, revised and corrected by me, then the judgment pronounced by me in the open court, on this the 21st day of December, 2024) (DEEPA.V), VIII Addl. Chief Judicial Magistrate, Bengaluru City.

ANNEXURE Witnesses examined for the prosecution :

PW1	Manjula.A
PW2	Lakshmiddevamma
PW3	Venu
PW4	Sri.Adhinarayanswamy
PW5	Smt.Lakshmi
PW6	Najinabi
PW7	Riyaz Pasha

Documents marked on behalf of the prosecution:

Ex.P.1 Complaint

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Ex.P.2 Mahazar

Ex.P.3 Invitation card
Ex.P.4 to 17 Nine Photos
Ex.P.18 Identity card
Ex.P.19 &20 Copy of Aadhar cards
Ex.P.21 Complaint
Ex.P.22 FIR
Ex.P.23 'C' report
Ex.P.24 Report

Material objects marked on behalf of the Nil
prosecution:
Witnesses examined for the defence Nil
Documents marked on behalf of the Nil
defence

VIII Addl. Chief Judicial
Magistrate, Bengaluru City.